

23NWCV03670 23NWCV03670

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 23NWCV03670 Hearing Date: August 14, 2026 Dept: P

LOURDES BELTRAN v. CARLOS OCHOA

CASE NO.: 23NWCV03670

HEARING: 08/14/2026 @ 9:30 AM

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TENTATIVE ORDER

Counsel LA Century Law and their attorneys of record's

motion to be relieved as counsel for Plaintiff Lourdes Beltran is GRANTED. This Order will take effect upon the filing of proof of

service of the signed order upon the client and on all parties that have appeared in the case.

Moving party to give notice.

Counsel LA Century Law and their attorneys of record (Counsel)

moves to be relieved as counsel for Plaintiff Lourdes Beltran (Plaintiff).

Background

On November 13, 2023, Plaintiff Lourdes Beltran (Plaintiff)

filed this action against Defendant Carlos Ochoa and Does 1 to 25. On January

22, 2025, Plaintiff filed the operative FAC against Carlos Ochoa, Emily

Mercado, Richard Mercado, and Does 1 to 25 (collectively, Defendants).

This action arises out of a dog bite. The FAC alleges that on April 27, 2022, Plaintiff was at 5225 Wood Avenue, South Gate, California 90280, to deliver food to Defendants. (FAC, ¶¶ 9-11.) While on the property, a dog owned by Defendants (Dog) “charged Plaintiff and bit him” resulting in injuries to Plaintiff. (FAC, ¶¶ 12-13.) The FAC asserts two causes of action: (1) strict liability and (2) negligence.

On July 13, 2026, the Court granted Defendant Carlos Ochoa's motion for summary judgment as to the FAC.

On July 31, 2026, the Court denied Counsel's ex parte application to advance the instant motion. The Court granted Counsel's alternative request, to continue the trial date to October 26, 2026.

Legal Standard

“The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: ¶ 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; ¶ 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.)

California Rules of Court, rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil

Procedure section 284, subd. (2): (1) a notice of motion and motion directed to the client (Form MC-051); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subd. (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subd. (1) (Form MC-052); (3) a proof of service evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Form MC-053). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

Discussion

Counsel moves to be relieved as counsel for Plaintiff.

Here, in compliance with California Rules of Court, rule 3.1362, Counsel submits a notice of motion and motion on Form MC-051 directed to Plaintiff. Counsel also submits a declaration on Form MC-052 demonstrating good cause to be relieved as counsel for Plaintiff. Specifically, Counsel states that there has been a breakdown of the attorney-client relationship and Plaintiff has advised Counsel that she no longer wishes to be represented by their firm. Counsel provides a proposed order on Form MC-053. Counsel attests to serving Plaintiff via mail with the moving papers after confirming Plaintiff's address within the last thirty days. Therefore, the Court finds that Counsel has complied with the requirements under California Rules of Court, rule 3.1362.

Accordingly, Counsel's motion to be relieved as counsel for Plaintiff is GRANTED. This Order will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.